

Meenu Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 December 2017 · Writ - C No. 61902 of 2017 · Writ - C No. 61902 of 2017 · **Writ dismissed; liberty to avail Supply Code 2005 remedies.**

HEADNOTE

A writ questioning disputed recovery of electricity consumption charges was not entertained. Paragraph 6.5 of the Electricity Supply Code, 2005 supplies a remedy for such a billing grievance, and paragraph 6.14 authorises the licensee to grant instalments; the consumer was left at liberty to pursue those Code remedies.

FACTUAL SUMMARY

Smt. Meenu Gupta petitioned the Allahabad High Court to question recovery of electricity consumption charges. She contended that the claim was highly disputed and that no statement showing how the amount had been determined had been given. Counsel for the petitioner stated at the Bar that she was ready and willing to deposit the entire amount if easy instalments were settled. Counsel for the electricity company and the State were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute; alternative remedy

HOLDING

A consumer who disputes recovery of electricity consumption charges, including where no statement of how the amount was determined has been given, has a remedy under paragraph 6.5 of the Electricity Supply Code, 2005. ¶ 1

HOLDING-UNIT · UP-2005::6.14

instalment facility; writ not entertained

HOLDING

Paragraph 6.14 of the Electricity Supply Code, 2005 authorises the licensee to grant instalments having regard to relevant facts; where the consumer is willing to pay in easy instalments, the High Court will not entertain a writ and will leave the consumer to that Code remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ questioning disputed recovery of electricity consumption charges was not entertained. Paragraph 6.5 of the Electricity Supply Code, 2005 supplies a remedy for such a billing grievance, and paragraph 6.14 authorises the licensee to grant instalments; the consumer was left at liberty to pursue those Code remedies. ¶ 1

installment-payment-clause-6.14 A writ questioning disputed recovery of electricity consumption charges was not entertained. Paragraph 6.5 of the Electricity Supply Code, 2005 supplies a remedy for such a billing grievance, and paragraph 6.14 authorises the licensee to grant instalments; the consumer was left at liberty to pursue those Code remedies. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY CONSUMPTION RECOVERY AND THE BASIS ON WHICH THE AMOUNT WAS DETERMINED

Left to Electricity Supply Code, 2005 remedies under paragraphs 6.5 and 6.14. ¶ 1

